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Paraguay

Compilation of information prepared by the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the outcome of the previous review.¹ It is a compilation of information contained in relevant United Nations documents, presented in a summarized manner owing to word-limit constraints.

II. Scope of international obligations and cooperation with human rights mechanisms

2. The Special Rapporteur on minority issues noted that Paraguay still had not ratified an international instrument, despite the commitment that it had made during the second review cycle. The Special Rapporteur, together with the United Nations country team and the United Nations Educational, Scientific and Cultural Organization (UNESCO), recommended that Paraguay ratify the Optional Protocol to the International Covenant on Economic, Social and Cultural Rights.²

3. The Special Rapporteur on the implications for human rights of the environmentally sound management and disposal of hazardous substances and wastes, together with the United Nations country team, recommended that Paraguay fully comply with the Views of the Human Rights Committee in the cases relating to Campo Agua'ẽ and Colonia Yerutí.³

4. The Committee on the Protection of the Rights of All Migrant Workers and Members of Their Families and the Committee on the Rights of Persons with Disabilities acknowledged the SIMORE recommendations monitoring mechanism, as an outcome of a cooperation project between Paraguay and OHCHR.⁴

III. National human rights framework

1. Constitutional and legislative framework

5. The Special Rapporteur on minority issues noted that the Paraguayan legislative framework did not protect the full range of human rights. He recommended that Paraguay adopt comprehensive national human rights legislation to cover the full range of human rights that it had accepted by ratifying human rights treaties, and recognize the competence of the



Committee on the Elimination of Racial Discrimination to receive and examine individual communications.⁵

6. The Committee on Migrant Workers took note of the migration bill. However, it was concerned that the bill was still pending more than five years after it had been introduced. The Committee urged Paraguay to adopt and publish the migration law and ensure that its content was fully in line with the International Convention on the Protection of the Rights of All Migrant Workers and Their Families.⁶

2. Institutional infrastructure and policy measures

7. The United Nations country team noted that the Ombudsman's Office had been recredited with category A status by the Global Alliance of National Human Rights Institutions, thereby initiating a process of institutional strengthening in line with the principles relating to the status of national institutions for the promotion and protection of human rights (the Paris Principles). The budget allocated to the institution had been increased, but it continued to have one of the lowest budgets of any agency.⁷ The Special Rapporteur on minority issues recommended that the national human rights institution comply fully with the Paris Principles, having a broad mandate on universal human rights standards and being autonomous and independent.⁸

8. The country team stated that a bill to establish a ministry of the family by merging the Ministry for Women, the Ministry for Children and Adolescents and the National Secretariat for Youth was being considered and that this initiative could have restricted the visibility of, and responses to, structural inequalities and different types of gender-based violence.⁹

9. The country team noted that improvements had been made to the National Institute of Indigenous Affairs. However, challenges remained, such as a lack of inter-agency coordination, a shortage of specific resources and a limited capacity to enforce compliance with consultation procedures.¹⁰

10. The Committee on Migrant Workers recommended that Paraguay strengthen its institutional structure for dealing with migration-related issues by creating mechanisms and engaging in capacity-building at the different entities coordinating work on those issues.¹¹

11. The Committee on the Rights of Persons with Disabilities recommended endowing the National Secretariat for the Human Rights of Persons with Disabilities with sufficient resources to allow it to fulfil its function effectively.¹²

IV. Promotion and protection of human rights

A. Implementation of international human rights obligations, taking into account applicable international humanitarian law

1. Equality and non-discrimination

12. The Special Rapporteur on minority issues was concerned about the persistent discrimination suffered by women, persons of African descent, Indigenous Peoples and persons with disabilities and about the high level of impunity regarding hate crimes against those groups.¹³ The same Special Rapporteur and the Committee on Migrant Workers were concerned that Paraguay still had not adopted a law against all forms of discrimination, despite the numerous international recommendations.¹⁴

13. The Special Rapporteur on minority issues, the Committee on Migrant Workers, the Committee on the Rights of Persons with Disabilities and the United Nations country team recommended that Paraguay promptly adopt a law against all forms of discrimination.¹⁵ The Committee on the Rights of the Child recommended putting in place laws and regulations to explicitly prohibit all forms of discrimination on the grounds of social origin, ethnicity, disability, sex, gender identity and sexual orientation.¹⁶

14. The Committee on the Rights of Persons with Disabilities recommended that Paraguay establish accessible and effective procedures, including judicial, administrative and

complaints procedures, for victims of discrimination, and ensure that victims received reparation and perpetrators were punished.¹⁷

2. Right to life, liberty and security of person, and freedom from torture

15. The Committee on the Rights of the Child found that Paraguay was accountable for grave human rights violations concerning the killings of two 11-year-old girls during an operation conducted by the Joint Task Force of Paraguay against the Paraguayan People's Army, a guerrilla group. The Committee recommended that Paraguay take further steps to establish the truth, acknowledge the facts and accept responsibility for the failures in the investigation procedures, including considering the assistance of an international expert mission; strengthen its legal and regulatory framework regarding its law enforcement officials; and ensure that the police, law enforcement agents, armed forces and other agents acting on behalf of or with the consent or acquiescence of the State act with restraint and in conformity with international human rights law and international humanitarian law, including the principles of proportionality and necessity.¹⁸

16. The same Committee was concerned at cases of torture or ill-treatment of children in police stations and centres of deprivation of liberty. It recommended enforcing the prohibition of torture and ensuring that allegations of torture or ill-treatment or punishment of children were duly investigated, that perpetrators were punished and that children who were victims received effective remedies and psychosocial services.¹⁹

17. According to the United Nations country team, although initiatives had been undertaken to improve detention conditions and reduce overcrowding, the prison system continued to face a structural crisis. A total of 70% of the prison population was in pretrial detention, and overcrowding had reached 435% nationwide, with some facilities operating at more than 1,100% of their capacity. Conditions of extreme isolation had been documented in maximum security units. Women deprived of their liberty faced a simultaneous restriction of multiple rights, inhuman and degrading treatment and disproportionate penalties.²⁰

18. The Committee on Migrant Workers was concerned about the lack of information on the number of migrants detained, the conditions under which the period of "administrative delay" during entry proceedings was imposed and the length of time that that period lasted. It urged Paraguay to ensure that detention of migrants was an exceptional measure of last resort, to adopt alternatives to administrative detention for migrant workers and members of their families during proceedings relating to their entry into or expulsion from the country, and to ensure adequate and decent conditions in places of restriction of liberty and, where applicable, the effective separation of migrant workers and members of their families from persons under criminal investigation.²¹

19. The Committee on the Rights of Persons with Disabilities was concerned at the involuntary treatment to which persons with disabilities were subjected at the psychiatric hospital. It recommended explicitly prohibiting by law the use of isolation, mechanical restraints, forced medication, electroconvulsive therapy, confinement in individual cells and isolation rooms, and forced treatment in crisis situations; and establishing accessible complaint and investigation mechanisms so that persons with disabilities in institutions could report instances of ill-treatment, receive legal assistance and have an effective remedy.²²

3. Administration of justice, including impunity, and the rule of law

20. According to the Special Rapporteur on hazardous substances and wastes, Paraguay faced several challenges in terms of access to justice. In particular, the country's judicial system was slow and inefficient, with most reports of human rights violations not being investigated. He recommended ensuring that people had effective access to mechanisms, resources and support to help them understand and use the judicial system, and addressing the inequalities and discrimination that hindered access to justice for some groups.²³

21. The Committee on the Rights of Persons with Disabilities recommended that Paraguay adopt the protocol on access to justice for persons with disabilities and ensure that it was strictly enforced. The Committee also recommended that Paraguay put in place age- and gender-sensitive procedural accommodation in all judicial proceedings to ensure that persons with disabilities could participate effectively, including as judges, legal advisers or

witnesses, in such proceedings, and that it make the necessary procedural changes at the provincial level to afford such accommodation.²⁴

22. The Committee on the Rights of the Child recommended strengthening restorative mechanisms and non-custodial sanctions for the social insertion of adolescents in conflict with the law and actively promoting non-judicial measures.²⁵

4. Fundamental freedoms and the right to participate in public life

23. The United Nations country team noted that attacks, reprisals and assaults against human rights defenders, particularly defenders of sexual and reproductive rights, continued to be carried out. It also noted that the majority of murders of journalists remained unpunished. It added that, although the Inter-American Court of Human Rights had issued a ruling ordering the establishment of a mechanism for protecting journalists and defenders, the bill presented for this purpose had not made any progress through the parliament since 2021.²⁶ The country team recommended that the law establishing this mechanism be adopted.²⁷ The Special Rapporteur on hazardous substances and wastes recommended adopting a programme for the protection of human rights defenders.²⁸

24. UNESCO stated that, since 2006, when systematic monitoring had begun, its Observatory of Killed Journalists had recorded nine killings of journalists in Paraguay.²⁹ UNESCO encouraged Paraguay to continue investigating unresolved cases of killed journalists.³⁰

25. UNESCO recommended decriminalizing defamation and placing it within civil defamation legislation that was in accordance with international standards,³¹ ensuring a transparency and accountability mechanism on the governance of digital platforms to ensure the upholding of human rights and mitigate the risks associated with the spread of harmful content online,³² and assessing the system of supervision of the broadcasting sector in order to ensure that that process was transparent and independent.³³

5. Prohibition of all forms of slavery, including trafficking in persons

26. The Committee on Migrant Workers was concerned that Paraguay had not yet achieved satisfactory standards in its fight against trafficking in persons and that children, especially those living on the street in the tri-border area, continued to be subjected to exploitation in-country. The Committee recommended that Paraguay include specific provisions in the Criminal Code to penalize trafficking in persons and smuggling of migrants; ensure that all offences of trafficking in persons, in particular those related to sexual exploitation and those in which public officials were complicit, were effectively and impartially investigated, prosecuted and punished; and allocate sufficient resources for the provision of assistance to victims.³⁴

27. The United Nations country team noted that Indigenous Peoples were particularly vulnerable to forced labour and debt bondage owing to the structural conditions of poverty and exclusion under which they lived.³⁵

28. The Committee on the Rights of the Child recommended that Paraguay withdraw all children involved in the worst forms of child labour, especially in rural areas and in domestic labour, and ensure their reintegration into the education and social protection systems, and that it eliminate the practice of *criadazgo* (forced child servitude) and provide full protection to children who were victims.³⁶ The Committee also recommended that Paraguay develop a national strategy to combat trafficking in persons.³⁷

6. Right to work and to just and favourable conditions of work

29. The Committee on the Rights of Persons with Disabilities was concerned about the limited implementation of the National Action Plan for the Rights of Persons with Disabilities 2015–2030 regarding the creation of more jobs.³⁸ The Committee recommended that Paraguay develop and apply a constructive strategy to implement effectively pillar 13 of the National Action Plan and include affirmative measures and incentives that encouraged the employment of persons with disabilities in the public and private sectors, in urban, rural and remote areas.³⁹

30. The Committee on Migrant Workers recommended that Paraguay provide resources and put in place procedures to break the vicious circle where, in order to work, migrants needed permanent residence documents, but in order to obtain those documents, they needed to have income from a job.⁴⁰

31. The United Nations country team recommended ratifying the Violence and Harassment Convention, 2019 (No. 190) and the Violence and Harassment Recommendation, 2019 (No. 206) of the International Labour Organization (ILO) concerning violence and harassment in the workplace.⁴¹

7. Right to social security

32. The Committee on the Rights of the Child recommended that Paraguay increase budget allocations for social protection programmes affecting children and strengthen their effectiveness, in particular by improving multi-agency coordination in the identification and disbursement of grants, expanding coverage of the child grant programme to cover all groups of children in disadvantaged situations, and addressing barriers that prevented certain groups of children from acquiring access to social assistance.⁴²

8. Right to an adequate standard of living

33. The Committee on the Rights of the Child was concerned about the large number of children living in poverty and the regional disparities in access to rights.⁴³ It recommended that Paraguay strengthen measures to end child poverty and ensure the right of all children to an adequate standard of living, including their access to adequate housing, water and sanitation, paying particular attention to children living in rural areas and urban informal settlements.⁴⁴

34. The Committee on the Rights of Persons with Disabilities was concerned at the rate of poverty among Indigenous persons with disabilities. It recommended that Paraguay increase the budget allocated to social programmes, and the amounts provided, in order to achieve a real reduction in poverty among persons with disabilities, especially Indigenous persons with disabilities and persons with disabilities living in rural and remote areas.⁴⁵

35. The Committee on the Rights of Persons with Disabilities recommended ensuring that persons with disabilities had access to housing alternatives in their communities.⁴⁶

9. Right to health

36. The United Nations country team noted that, despite the efforts made, challenges continued to surround the quality of healthcare, especially in rural areas and Indigenous communities. Food insecurity, poverty and exposure to violence had a serious impact on the well-being of Indigenous children, who also faced forced evictions, displacement and the pollution of their ancestral lands, directly affecting their health and access to basic services.⁴⁷

37. The Committee on the Rights of the Child was also concerned about the quality of healthcare.⁴⁸ It recommended increasing access to quality and culturally sensitive healthcare, particularly in rural areas and Indigenous communities, and improving vaccination coverage and providing accurate information about the importance of vaccines.⁴⁹

38. The country team recommended strengthening health information systems with data disaggregated by gender, age, ethnicity, socioeconomic status and disability in order to inform evidence-based policies.⁵⁰ The country team also recommended ensuring intercultural health services tailored to the needs of Indigenous Peoples, who should participate effectively in the design and implementation of such services.⁵¹

39. The Committee on the Rights of Persons with Disabilities was concerned at the limited implementation of the National Sexual and Reproductive Health Plan 2019–2023 and the failure to adopt the bill on sexual, reproductive, maternal and perinatal health.⁵² The country team stated that the budget allocated to the sexual and reproductive health programme had been insufficient, undermining the sustainability of the progress made.⁵³ It also noted persistent challenges in guaranteeing sexual and reproductive rights, especially the rights of adolescents, Indigenous women, persons with disabilities and members of the LGTBQ+ community.⁵⁴ The country team recommended ensuring access to sexual and reproductive

health services, including abortion services in cases permitted by law, and implementing comprehensive measures to reduce the maternal mortality rate.⁵⁵

40. The Committee on the Rights of the Child was concerned about the high number of adolescent pregnancies and about the prohibition by the Ministry of Education and Science on disseminating age-appropriate information on sexual and reproductive health in educational institutions.⁵⁶ It recommended repealing resolution No. 933/2023 of the Ministry of Education and Sciences and adopting a comprehensive sexual and reproductive health policy for adolescents; ensuring that sexual and reproductive health and gender-related education was part of the mandatory school curriculum and was targeted at adolescents, with special attention paid to preventing early pregnancy and sexually transmitted infections; and decriminalizing abortion in all circumstances and ensuring access to safe, timely and quality abortion and post-abortion care services.⁵⁷

41. The Committee on the Rights of Persons with Disabilities was concerned about barriers encountered by persons with disabilities in obtaining health services, and the persistence of the medical model of disability in Act No. 7018/2022.⁵⁸ It recommended ensuring that all persons with disabilities had access to high-quality gender-sensitive and culturally sensitive health services; decentralizing health services, and placing a special focus on the care of Indigenous persons with disabilities; adopting promptly the bill on sexual, reproductive, maternal and perinatal health; and aligning Act No. 7018/2022 on mental health, and the regulations thereto, with the human rights model of disability set out in the Convention on the Rights of Persons with Disabilities.⁵⁹

42. The Committee on Migrant Workers noted the 2015–2030 National Health Policy and programmes aimed at ensuring universal access to healthcare.⁶⁰ It recommended that Paraguay take specific steps to give all migrant workers and members of their families access to its healthcare system.⁶¹

10. Right to education

43. The Committee on the Rights of Persons with Disabilities expressed concern at the lack of investment in the right to education of persons with disabilities.⁶² The Committee recommended increasing the budget, staffing and resources allocated to the Directorate General for Inclusive Education so that it could carry out its functions throughout the country.⁶³ The Committee also recommended that Paraguay redouble its efforts to end segregated special education, including through a national action plan on high-quality inclusive education that guaranteed access to mainstream schools for all students with disabilities, including in rural and remote areas,⁶⁴ and that it ensure that schools were fully accessible and that augmentative and alternative modes and systems of communication were used.⁶⁵

44. The same Committee was concerned that little progress had been made in the capacity-building and training of teachers working in schools located in Indigenous communities under Act No. 5136/13 on inclusive education.⁶⁶

45. The Committee on the Rights of the Child recommended that Paraguay ensure that all children completed free, equitable and quality primary and secondary education leading to achieving effective learning outcomes, and that it develop gender-sensitive strategies for school retention and reintegration, in particular for adolescent mothers, pregnant girls and those in early unions.⁶⁷

46. UNESCO recommended that Paraguay strengthen efforts to increase enrolment rates, especially at the pre-primary and secondary levels, which were both compulsory; and continue efforts to ensure gender equality in education.⁶⁸

11. Cultural rights

47. The Special Rapporteur on minority issues noted that among the 19 Indigenous languages spoken in Paraguay, six of those languages were in danger of extinction. He recommended enacting new legislation to ensure equal and effective bilingualism in the use of the Spanish and Guaraní languages in State institutions, services and public media and in particular in official documents and laws, and respecting the linguistic rights of Indigenous

communities in order to fully implement the International Labour Organization (ILO) Indigenous and Tribal Peoples Convention, 1989 (No. 169) and better integrate it into judicial processes and the education system.⁶⁹

48. The United Nations country team recommended ensuring the cultural rights of the entire population, including people of African descent, migrants, persons with disabilities and Indigenous Peoples, by promoting access to and equitable participation in culture, the protection of tangible and intangible cultural heritage, and cultural diversity through the development of a new national culture plan.⁷⁰

12. Development, the environment, and business and human rights

49. According to the Special Rapporteur on hazardous substances and wastes, Paraguay had been taking steps in hazardous waste management. However, the country faced significant challenges. Rural communities and Indigenous Peoples faced an alarming level of exposure to toxic substances, particularly hazardous pesticides and most of the country's environmental laws were not observed.⁷¹ The Special Rapporteur recommended helping companies handling hazardous wastes to develop plans for the environmentally sound management and disposal of that waste; implementing emergency measures to stop the contamination of soils and the Patiño aquifer with methyl tert-butyl ether; addressing the human rights abuses related to the use of pesticides, in a structural and decisive manner, including by implementing accessible educational and awareness-raising programmes, in Spanish and Guaraní, to inform pesticide users and communities of the dangers of pesticide misuse and of the necessary protective measures; and conducting health cohort studies and environmental pollution monitoring studies to identify and prevent the negative health effects of pesticides.⁷²

B. Rights of specific persons or groups

1. Women

50. The United Nations country team noted that cases of femicide had been observed in Paraguay in previous years and, according to a national survey, the level of violence against women was very high.⁷³ It recommended that a comprehensive system of prevention, support and redress be implemented to combat violence against women, girls, and adolescents.⁷⁴

51. The Committee on the Rights of Persons with Disabilities highlighted the insufficient measures taken to prevent and eliminate multiple discrimination and violence against women with disabilities, Indigenous women with disabilities and women with disabilities living in rural areas.⁷⁵ It recommended that, with the effective participation of women and girls with disabilities, Paraguay mainstream a disability perspective in its laws and policies on gender equality and incorporate a gender perspective into its laws and policies on disability.⁷⁶

52. The same Committee recommended that Paraguay adopt a national strategy to promote a gender- and age-sensitive human rights model of disability and effectively involve persons with disabilities in the development, implementation and regular evaluation of the strategy.⁷⁷

53. Concerned at the persistence of early marriage, the Committee on the Rights of the Child and UNESCO recommended that Paraguay amend the legislation to ensure that the minimum age of marriage was 18 years, without exception.⁷⁸

54. The country team stated that the economic and social crisis arising from the pandemic had disproportionately affected women, which showed that the persistence of gender norms restricted their full participation in the labour market and society.⁷⁹ It added that only 36.8% of farms belonged to women, representing only 11.6% of the total area of agricultural land. Furthermore, according to the country team, women owned only 13.4% of plots of land with firm titles.⁸⁰

55. The country team noted that women's representation in governance spaces remained limited.⁸¹

2. Children

56. The Committee on the Rights of the Child was concerned at the high rates of missing children, in particular girls and in the context of *criadazgo*. The Committee recommended that Paraguay take immediate and effective measures to prevent children going missing, addressing the root causes of this, including *criadazgo*, and that the country's National Police and Office of the Public Prosecutor follow up on cases of missing children.⁸²

57. The same Committee was concerned at high rate of child sexual abuse, in particular of girls and Indigenous children, both online and in the context of tourism, and at the lack of a comprehensive system and strategy for preventing and combating child abuse and sexual violence and for protecting the children who were victims.⁸³ It recommended extending, on the basis of an evaluation, the national plan to end violence against children, and the scope of the strategy for preventing and combating child abuse and sexual violence; and amending the Penal Code so as to clearly criminalize all acts of sexual violence, regardless of the sex and gender, against children, with penalties proportionate to the seriousness of the offences.⁸⁴

58. The Committee on the Rights of Persons with Disabilities was concerned about the persistent poverty among children with disabilities, particularly Indigenous children with disabilities and children with disabilities living in rural and remote areas.⁸⁵

59. The Committee on the Rights of the Child recommended implementing targeted policies and programmes to eliminate discrimination against children, in particular children with disabilities, Indigenous children, children living with HIV/AIDS, children in street situations and lesbian, gay, bisexual, transgender or intersex children, and ensuring their equal access to health services, education and a decent standard of living.⁸⁶

60. The Committee on the Rights of Persons with Disabilities recommended that Paraguay reduce poverty among children with disabilities, paying particular attention to the situations of Indigenous children with disabilities and children with disabilities living in rural and remote areas, and reinforce the *Abrazo* Programme; and that it put in place, in close coordination with the institutions comprising the National System for the Comprehensive Protection and Advancement of Children and Adolescents, monitoring and oversight measures to ensure strict compliance with Act No. 5659/16 on the protection of children and adolescents against physical punishment in homes, schools and institutions in both urban and rural areas, and report on complaints and the follow-up given to them.⁸⁷

3. Persons with disabilities

61. The Committee on the Rights of Persons with Disabilities appreciated the National Action Plan for the Rights of Persons with Disabilities 2015–2030 and related legislative measures.⁸⁸

62. The same Committee noted the continuing difficulties that individuals faced in obtaining a disability certificate⁸⁹ and was concerned at the little progress made in implementing Act No. 4934/13 on accessibility.⁹⁰ It recommended updating and extending the 2016–2018 Strategic Plan, and ensuring that municipalities harmonized their laws with Act No. 4934/13 and that the Basic Guide on Accessibility of the Physical Environment for Persons with Disabilities was applied.⁹¹

63. The same Committee recommended that Paraguay actively promote the participation of persons with disabilities, especially women with disabilities, in political parties, so that they may be put forward as candidates for elected office.⁹²

64. The United Nations country team took note of the enactment of the Mental Health Act and its National Plan 2024–2030. However, it added that serious shortcomings persisted, including the use of prolonged institutionalization without consent.⁹³

65. The Committee on the Rights of Persons with Disabilities recommended that Paraguay ensure that all public information was accessible to persons with disabilities, and that it allocate sufficient funding for the development, promotion and use of accessible communication formats and alternative means of communication.⁹⁴

4. Indigenous Peoples and minorities

66. The United Nations country team noted the persistent discrimination directed at Indigenous Peoples, which was reflected in the difficulties that they experienced in gaining equitable access to the rights to health, education, water and basic services such as electricity and sanitation. The country team noted the difficulties that Indigenous Peoples faced in fully exercising their cultural rights.⁹⁵ It also stated that 66.2% of members of Indigenous Peoples lived in poverty while 34.4% lived in extreme poverty, these figures being three times the national average.⁹⁶

67. While acknowledging some progress, the Special Rapporteur on minority issues expressed concerns at the fact that Indigenous Peoples were often victims of hate crimes, of hate speech and of direct discrimination in public services, including in hospitals and schools, and in access to basic services.⁹⁷

68. The Special Rapporteur on minority issues stated that Indigenous Peoples' lands were not adequately protected, and noted an increase in forced evictions affecting Indigenous Peoples, together with a significant rise in protests, both peaceful and violent.⁹⁸

69. According to the country team, forced evictions of Indigenous communities, the parcelling out of communal lands and the pollution of rivers particularly affected women and children. In addition, the housing conditions of the Indigenous population were poor.⁹⁹ It recommended developing an inter-agency protocol for the prevention of forced evictions that would guarantee the protection of human rights, including those of the Indigenous Peoples, ensure their access to their ancestral lands and provide redress to those who have been evicted.¹⁰⁰

70. According to the Special Rapporteur on minority issues, the Afrodescendent minority of Paraguay was often invisible and unacknowledged, and there was a lack of empowerment and self-recognition by Afrodescendent peoples themselves. He recommended including questions on Afrodescendent identity in all future national censuses, in consultation with the interested parties, including all Afrodescendent communities.¹⁰¹

71. The country team stated that the adoption of Act No. 6940, which established mechanisms to prevent and punish racism and discrimination against people of African descent, constituted partial progress and that its implementation was still pending.¹⁰²

5. Lesbian, gay, bisexual, transgender and intersex persons

72. The Committee on the Rights of the Child was concerned at failure to implement the provisions banning "conversion therapy" in Act No. 7018/2022 on mental health. It recommended that Paraguay develop policies and allocate sufficient resources to promote the mental health of children, and eradicate "conversion therapies".¹⁰³

73. The United Nations country team recommended repealing decision No. 29.664 of the Ministry of Education and Science, which prohibited the teaching of topics related to gender theory in schools.¹⁰⁴

6. Migrants and refugees

74. The Special Rapporteur on minority issues noted that some migrants and refugees still faced obstacles and challenges in access to employment, education or other public services.¹⁰⁵ The Committee on Migrant Workers recommended that Paraguay take effective measures, with deadlines, indicators, and monitoring and evaluation benchmarks, to implement the migration policy; and provide sufficient human, technical and financial resources for its implementation.¹⁰⁶ The same Committee also recommended establishing ordinary regularization mechanisms that were regulated by law, in accordance with the International Convention on the Protection of the Rights of All Migrant Workers and Their Families, and that applied to all migrants.¹⁰⁷

75. The Committee on Migrant Workers was concerned at Emergency Act No. 6524/2020, which made migrants and refugees ineligible for the aid offered to workers in the informal sector.¹⁰⁸

76. The same Committee recommended ensuring that, in practice, migrant workers and members of their families, including those in an irregular situation, were informed about migration procedures and the documents needed, about the possibility of applying for regularization even in the case of rejection, about their rights upon arrival and during transit and about the fact that they had access to remedies, complaint mechanisms and other forms of redress.¹⁰⁹

77. The same Committee recommended collecting information on school enrolment rates for migrant children, including those in an irregular situation.¹¹⁰

78. The Special Rapporteur on minority issues recommended setting up a migrant and refugee assistance service, accessible online or by telephone, free of charge, in order to provide assistance and practical information to migrants and refugees.¹¹¹

7. Stateless persons

79. The Committee on the Rights of Persons with Disabilities was concerned about the 30 per cent underregistration rate for births. It recommended that Paraguay step up the activities of the “Right to an Identity” programme, including in rural and remote areas.¹¹² The Committee on the Rights of the Child recommended ensuring comprehensive free-of-charge birth registration and the issuance of birth certificates for all children born in the territory of Paraguay, immediately after the birth, regardless of their or their parents’ immigration status.¹¹³

Notes

¹ A/HRC/48/9, A/HRC/48/9/Add.1 and A/HRC/48/2.

² A/HRC/55/51/Add.1, paras. 16 and 74 (b); United Nations country team submission for the universal periodic review of Paraguay, p. 12; and UNESCO submission for the universal periodic review of Paraguay, para. 28 (iv).

³ A/HRC/54/25/Add.3, para. 101 (b); and United Nations country team submission, p. 12.

⁴ CMW/C/PRY/CO/2, paras. 10, 23 and 30; and CRPD/C/PRY/CO/2-3, para. 4.

⁵ A/HRC/55/51/Add.1, paras. 26 and 74 (a) and (c).

⁶ CMW/C/PRY/CO/2, paras. 13 and 14.

⁷ United Nations country team submission, para. 14.

⁸ A/HRC/55/51/Add.1, para. 74 (f). See also CMW/C/PRY/CO/2, paras. 26 and 28.

⁹ United Nations country team submission, para. 13.

¹⁰ Ibid., para. 11.

¹¹ CMW/C/PRY/CO/2, para. 22.

¹² CRPD/C/PRY/CO/2-3, para. 8 (e).

¹³ A/HRC/55/51/Add.1, para. 27.

¹⁴ CMW/C/PRY/CO/2, para. 32; and A/HRC/55/51/Add.1, para. 27.

¹⁵ CMW/C/PRY/CO/2, para. 36; and CRPD/C/PRY/CO/2-3, para. 12 (a). See also A/HRC/55/51/Add.1, para. 74 (g); and United Nations country team submission, p. 12.

¹⁶ CRC/C/PRY/CO/4-6, para. 14 (a) and (b).

¹⁷ CRPD/C/PRY/CO/2-3, para. 12 (b).

¹⁸ See <https://www.ohchr.org/en/press-releases/2025/01/paraguay-responsible-grave-rights-violations-over-deaths-two-young-girls-un>; and CRC/C/PRY/IR/1, paras. 52 and 54.

¹⁹ CRC/C/PRY/CO/4-6, paras. 26 (a) and 27.

²⁰ United Nations country team submission, paras. 24, 25 and 27.

²¹ CMW/C/PRY/CO/2, paras. 44 and 45.

²² CRPD/C/PRY/CO/2-3, paras. 29 (a) and 30 (a) and (b).

²³ A/HRC/54/25/Add.3, paras. 87 and 101 (f) (i and ii).

²⁴ CRPD/C/PRY/CO/2-3, para. 26 (a) and (f).

²⁵ CRC/C/PRY/CO/4-6, para. 50 (a).

²⁶ United Nations country team submission, paras. 29–31.

²⁷ Ibid., p. 12.

²⁸ A/HRC/54/25/Add.3, para. 101 (f) (vi).

²⁹ UNESCO submission, para. 17.

³⁰ Ibid., para. 22.

³¹ Ibid., para. 23.

³² Ibid., para. 24.

³³ Ibid., para. 25.

- 34 CMW/C/PRY/CO/2, paras. 67–71. See also United Nations country team submission, para. 34.
- 35 United Nations country team submission, para. 36.
- 36 CRC/C/PRY/CO/4-6, para. 47 (a).
- 37 Ibid., para. 49 (a).
- 38 CRPD/C/PRY/CO/2-3, para. 47 (c).
- 39 Ibid., para. 48 (c).
- 40 CMW/C/PRY/CO/2, para. 38.
- 41 United Nations country team submission, p. 13.
- 42 CRC/C/PRY/CO/4-6, para. 36 (b).
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- 50 United Nations country team submission, p. 13.
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- 93 United Nations country team submission, para. 45.
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- 95 United Nations country team submission, para. 17.
- 96 Ibid., para. 37.
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- ⁹⁸ Ibid., paras. 56 and 58.
- ⁹⁹ United Nations country team submission, paras. 72 and 73.
- ¹⁰⁰ Ibid., p. 12. See also A/HRC/55/51/Add.1, para. 74 (o).
- ¹⁰¹ A/HRC/55/51/Add.1, paras. 35 and 74 (k).
- ¹⁰² United Nations country team submission, para. 16.
- ¹⁰³ CRC/C/PRY/CO/4-6, paras. 33 (f) and 34 (e).
- ¹⁰⁴ United Nations country team submission, p. 12.
- ¹⁰⁵ A/HRC/55/51/Add.1, para. 72.
- ¹⁰⁶ CMW/C/PRY/CO/2, para. 15.
- ¹⁰⁷ Ibid., para. 16.
- ¹⁰⁸ Ibid., para. 35.
- ¹⁰⁹ Ibid., para. 43.
- ¹¹⁰ Ibid., para. 59.
- ¹¹¹ A/HRC/55/51/Add.1, para. 74 (i).
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